

Court No. - 21

Case :- WRIT - C No. - 58998 of 2011

Petitioner :- Executive Engineer Vidyut Nagriya Vitran Khand

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Rajeev Sharma

Respondent Counsel :- C.S.C.,B.K. Ojha

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Issue notice to respondents No.4&5. Steps within one week. Shri B.K. Ojha appears for respondent No.2. Respondent may file a counter affidavit within four weeks.

List thereafter.

Order Date :- 14.10.2011

L.F./18

Court No. - 10

Case :- WRIT - C No. - 58998 of 2011

Petitioner :- Executive Engineer Vidyut Nagriya Vitran Khand

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Rajeev Sharma

Counsel for Respondent :- C.S.C.,B.K. Ojha,N.I. Jafri

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Heard learned counsel for the parties.

The controversy raised with regard to the competence of the Consumer Grievance Redressal Forum in respect of the assessment order made under the Electricity Act, 2003 has been finally settled under the judgment and order of the Apex Court in the case of *Uttar Pradesh Power Corporation Limited and others vs. Anis Ahmad, reported in (2013) 8 SCC 491* and it has been held that the Consumer Grievance Redressal Forum has no power to redress any dispute with regard to an issue not within the meaning of "service" or "complaint" as defined under Section 2(1)(o) and 2(1)(c) of the Consumer Protection Act, 1986.

We are of the opinion that both, initiation of the complaint by the petitioner before the District Consumer Forum as well as the appeal filed by the Executive Engineer against the order of the District Consumer Forum, were not maintainable.

Both the orders are therefore set aside. Parties are at liberty to seek their remedy in accordance with the provisions of the Electricity Act 2003/Electricity Supply Code 2005.

Writ petition is allowed with the aforesaid observation.

Order Date :- 1.3.2016

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